

Complaints Procedure

If we get something wrong, here is exactly how we put it right, by when, and where you can take it if we fail.

DRAFT FOR LEGAL REVIEW — NOT LEGAL ADVICE. The timescales below follow the general shape required by UK redress schemes, but **the binding version is your own scheme's code of practice**. Check this document against the current code published by the scheme you actually belong to, and against your scheme membership terms, before publishing.

1. Why we have this procedure

Every UK estate agency business is required by law to belong to a government-approved redress scheme, and every member must operate a written in-house complaints procedure. Ours is set out below.

We are a member of [THE PROPERTY OMBUDSMAN / PROPERTY REDRESS SCHEME], membership number [NUMBER].

2. Stage 1 — tell your consultant

Raise it first with the consultant handling your sale or purchase. Most problems are a misunderstanding and are resolved the same day. If you would rather not, or if the complaint concerns that person, go straight to Stage 2.

3. Stage 2 — put it in writing

Write to [COMPLAINTS EMAIL] marking it “Formal complaint”, or post it to [COMPLAINTS POSTAL ADDRESS].

Please include:

- your name, address and a daytime telephone number;
- the property address or reference number;
- what happened, with dates where you have them;
- copies of anything relevant;
- what you would like us to do to put it right.

4. What happens next, and by when

Stage	Timescale	What we do
Acknowledgement	Within 3 working days	We confirm in writing that we have your complaint, and tell you who is investigating it and how to reach them.
Investigation and written outcome	Within 15 working days	A senior member of staff not previously involved investigates and sends you a full written response. If we genuinely need longer, we will write and tell you why, and give you a date.
Review	Within 15 working days of your request	If you are unhappy with the outcome, you may ask for it to be reviewed by a director.
Final viewpoint letter	Within 8 weeks of your original complaint	We issue our final position in writing. This letter is what allows you to escalate to the Ombudsman.

If you have not received a final viewpoint letter within 8 weeks, you do not have to keep waiting — you may refer the complaint to the redress scheme anyway.

5. Stage 3 — refer it to the Ombudsman

If you are still not satisfied, or 8 weeks have passed, you can refer your complaint to our redress scheme. **The service is free to you.**

[[THE PROPERTY OMBUDSMAN — tpos.co.uk](https://www.tpos.co.uk)] or [[PROPERTY REDRESS SCHEME — theprs.co.uk](https://www.theprs.co.uk)]

Points to be aware of:

- You must normally refer the complaint **within 12 months** of our final viewpoint letter.
- The scheme will usually expect you to have completed our in-house procedure first.
- The Ombudsman can make an award of compensation. Awards are binding on us if you accept them; accepting an award normally means you cannot pursue the same complaint through the courts.
- You are not obliged to accept the outcome. If you do not, your legal rights are unaffected.

To confirm before publishing: the exact name, current postal address, telephone number and website of the scheme you belong to, the current referral time limit, and the current maximum award. These change from time to time and should be taken from the scheme's own website on the day you publish, not from this draft.

6. Other routes open to you

- **Advice Direct Scotland** — free, impartial consumer advice for people in Scotland, at [consumeradvice.scot](https://www.consumeradvice.scot). This is the Scottish consumer advice service; the Citizens Advice consumer helpline serves England and Wales.

- **Trading Standards** — your local authority Trading Standards service, for breaches of consumer protection law such as misleading property particulars.
- **The First-tier Tribunal for Scotland (Housing and Property Chamber)** — if your complaint is about a **property factor** rather than about us, this is the route, once the factor's own complaints procedure is exhausted.
- **The Information Commissioner's Office** — for complaints about how we have handled your personal data (ico.org.uk).
- **The courts** — the Sheriff Court, including the simple procedure for lower-value claims. Nothing in this procedure limits your statutory rights, and using it does not affect your right to take legal action.

Changed from the England & Wales draft. The consumer advice service, the tribunal route for factor disputes and the court structure are all different in Scotland. If you also carry out letting agency work, tenants and landlords have a separate statutory route to the same tribunal under the Letting Agent Code of Practice.

7. Our record keeping

We keep a written record of every formal complaint, what we found and what we did about it, and review them periodically to identify patterns. Redress schemes may audit these records.

8. Accessibility of this procedure

If you need to make a complaint in a different format — by telephone, in large print, or through a representative acting for you — tell us and we will accommodate it. See our Accessibility Statement.

upbss — Complaints Procedure. Version 0.2 (draft, Scotland). Last updated [\[DATE\]](#). Redress scheme membership is a UK-wide requirement, but the consumer advice service, tribunal and court routes are Scottish. Verify all timescales against your redress scheme's current code of practice.